

Getting Started

Petition for Rehearing

IMPORTANT: This getting started guide and the instructions are not legal advice. They are only meant to help you learn how to use the *Petition for Rehearing* form. Your use of the form does not guarantee you will be successful in court.

To learn how to fill out the form and file it with the court, read the *HOW TO FILE A PETITION FOR REHEARING* instruction sheet and the instructions on the form.

Name of form:	<i>Petition for Rehearing</i>
Purpose of the form:	To tell the appellate court what it overlooked or misunderstood in its decision.
Types of cases the form CAN be used for:	All appeals to the Illinois Appellate Court.
Types of cases the form CANNOT be used for:	All appeals to any other court.
Cost to file the form:	None.
Special information or papers needed to complete the form:	You will need to refer to the record on appeal, including the common law record (the documents filed in the trial court) and the report of proceedings (the transcript of the trial court hearings). You will also need to cite legal authority (cases, statutes (laws), etc.) to support your arguments.
Statutes and rules covering the form:	Illinois Supreme Court Rules 321 , 323 , 341 , and 367 .
Where to find the form and instruction sheet:	ilcourts.info/forms
Where to get access to a computer and scanner to file and serve:	The appellate court clerk's office will have a computer and scanner where you can scan, save, and then use the computer to e-file and serve your document.
For more information:	Read the <i>HOW TO FILE A PETITION FOR REHEARING</i> instruction sheet that comes with this form. You may also contact the appellate court where you are filing your case. You can find the contact information for the appropriate appellate court at: ilcourts.info/appl-clerks . You can also find more self-help resources at: ilcourts.info/appl-resources .